

		accounting and stole tools from the business without permission of the other 50% shareholder. As such, the claim for violation of the UCL is sufficiently pled and the demurrer is OVERRULED. Seventh Cause of Action- Theft under Penal Code § 496 Defendant cites to the elements of theft and a description of the crime of theft, only to reach the conclusion that “such conclusory allegation fails as to BRUNS” with no further argument or elaboration. The Complaint alleges Defendant “took tools and equipment outside the scope of Plaintiff’s permission”, that the “theft of tools and equipment was not permitted or consented to by Plaintiff KBNJ, Inc.” and that Defendant also “took money belong [sic] to the corporation”. These are not conclusory allegations, but rather factual allegations supporting Plaintiff’s assertion of a cause of action for theft under Penal Code § 496. Accordingly, the demurrer is OVERRULED. Ninth Cause of Action- Declaratory Relief “To qualify for declaratory relief, [a party] would have to demonstrate its action presented two essential elements: ‘(a) a proper subject of declaratory relief, and (2) an actual controversy involving justiciable questions related to [the party’s] rights or obligations.’” (<i>Jolley v. Chase Home Finance, LLC</i> (2013) 213 Cal.App.4th 872, 909, quoting <i>Wilson & Wilson v. City Council of Redwood City</i>, (2011) 191 Cal.App.4th 1559, 1582). Defendant asserts that here, the controversy as to any money taken by Defendant is not ripe, however Defendant does not elaborate on this position. As such, the demurrer is OVERRULED. Moving party is ordered to give notice of this ruling.
8	30-2022-01281322 Bruns vs. Johnson	Case Management Conference Only
9	30-2022-01295439 Hensley Electric, Inc. vs. RND Genetics, LLC	The Opposition by judgment creditor Hensley Electric, Inc. to the Claim of Exemption filed by judgment debtor Richard Santos is DENIED. Here, debtor Richard Santos is making a claim of exemption under CCP §706.051. Pursuant to Code of Civil Procedure section 706.105, subdivision (a), a Judgment Debtor may